

102	Kim A. Le vs. United Medical Imaging, Inc. 2017-00962710	Final Accounting The court finds all settlement distribution efforts are fully concluded. The administrator's final report (ROA 510) is thus approved, and the court's file will be closed. Plaintiff to give notice of the court's ruling, including to the LWDA, within five (5) calendar days, and file proof of service. Plaintiff to also file proof of service of ROA 510 on the LWDA.
103	Walter vs. Capo Beach Healthcare, LLC 2024-01409294	Final Accounting Plaintiff Joan S. Walter's Final Accounting hearing is CONTINUED to March 4, 2027, at 2:00 p.m. in Department CX102 to confirm that the amount of the uncashed funds after the check-cashing deadline have been delivered to the State Controller's Office Unclaimed Property Fund in the names of the applicable payees, that the administrator's work is complete, and that the Court's file thus may be closed. All supporting papers must be filed at least sixteen (16) court days before the continued hearing date. If the settlement funds are not completely disbursed by the report deadline, Class Counsel must request a continuance. Failure to do so may result in the issuance of an Order to Show Cause re Monetary Sanctions. Plaintiff is ordered to give notice of this ruling to Defendant.
104	MeriCal, LLC vs. Green Jeeva, LLC 2026-01548478	Motion to Appear Pro Hac Vice Defendant/Cross-Complainant Green Jeeva, LLC's application for pro hac vice admission of attorney Jason D. Smith is GRANTED . On or before the anniversary of the date of this order, if this attorney remains counsel for the moving party, the moving party must pay an annual renewal fee of five hundred dollars (\$500) for each year that the attorney maintains pro hac vice status in this case. (Gov. Code, § 70617, subd. (e)(2).) Moving party shall provide notice.
105	DMS 2 LLC vs. Levecke Corporation 2023-01360387	1. Demurrer to Amended Complaint 2. Case Management Conference Defendant Kercksmar & Feltus's ("K&S") Demurrer to Plaintiff's Second Amended Complaint is OVERRULED . Meet and Confer Requirement As an initial matter, Plaintiff DMS 2 LLC contends that K&S failed to comply with the meet-and-confer requirements of Code of Civil Procedure (CCP) section 430.41 for the demurrer because the meet-and-confer correspondence cited by K&S in its motion were from August 2025, which related to Plaintiff's previous motion for leave to file the second amended

complaint (“SAC”), rather than specifically about the instant demurer. (See ROA #304, Opp., pp. 3-4.)

K&S responds that the SAC the motion for leave sought to file is the same SAC as the now operative complaint, and K&F’s meet and confer correspondence in connection with that motion to leave already explained to Plaintiff K&S’s position on why the SAC failed to state a cause of action and supported that position with the same authorities cited in the instant demurrer. (ROA #312, Reply, at pp. 2-3.) Plaintiff failed to respond, did not participate in a call as requested, did not offer any amendment, and did not identify legal support for the sufficiency of the pleading. (*Id.* at p. 3.) Accordingly, K&S contends that the purpose of CCP section 430.41’s meet and confer requirement has already been satisfied, even though technically the meet-and-confer correspondence related to Plaintiff’s motion for leave to amend as opposed to K&S’s instant demurrer. (*Id.* at pp. 2-3.)

CCP section 430.41, subdivision (a) requires that the parties meet and confer “for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.” It appears to the Court that the parties could not have reached an agreement as to the objections raised by the instant demurrer based upon the parties’ meet and confer efforts in August 2025.

In any case, even if K&S’s August 2025 meet and confer was insufficient to comply with this purpose, “[a] determination by the court that the meet and confer process was insufficient shall not be grounds to overrule or sustain a demurrer.” (CCP, § 430.41, subd. (a)(4).)

Therefore, the Court will consider and rule on the merits of the demurrer.

Merits

The crux of K&S’s demurrer rests entirely upon whether the usual notice pleading standard or a heightened pleading standard applies to the sole cause of action alleged against K&S in the SAC—i.e., the 2nd cause of action for aiding and abetting fraudulent transfer.

K&S contends that a heightened pleading standard applies and that the SAC fails to meet that standard because it “fails to provide specific facts of how and where any aiding and abetting occurred, which is required to sustain an[] action for fraud.” (ROA #272, Dem. P&A, p. 17.) However, K&S has cited no cases holding that an aiding and abetting cause of action is subject to heightened pleading standards.

K&S first cites *Opperman v. Path, Inc.* (N.D. Cal. 2014) 87 F.Supp.3d 1018, 1035. (Dem. P&A at p. 7.) However, the cited page of the opinion states only that “fraud claims are subject to a heightened pleading standard” under Federal Rules of Civil Procedure (FRCP), rule 9(b). (*Opperman, supra*, at p. 1035.) While analyzing the plaintiffs’ misrepresentation claims and fraudulent transfer claims in that case, the *Opperman* court applied Rule 9(b)’s heightened pleading standards. (*Id.* at

pp. 1045, 1066.) However, when discussing the plaintiffs' aiding and abetting claims, the court made no mention of Rule 9(b). Therefore, *Opperman* does not support K&S's contention.

K&S also cites *Hall v. Dept. of Adoptions of Los Angeles County* (1975) 47 Cal.App.3d 898, 904. (Dem. P&A at p. 17 [citing *Hall* for the proposition that "failure to provide specific facts of how and where any aiding and abetting occurred, which is required to sustain an action for fraud"].) But *Hall* did not even involve an aiding and abetting claim.

Under California law, "[l]iability may be imposed on one who aids and abets the commission of an intentional tort if the person (a) knows the other's conduct constitutes a breach of duty and gives substantial assistance or encouragement to the other to so act or (b) gives substantial assistance to the other in accomplishing a tortious result and the person's own conduct, separately considered, constitutes a breach of duty to the third person." (*Casey v. U.S. Bank National Assn.* (2005) 127 Cal.App.4th 1138, 1144, internal quotes & ellipsis omitted.) The parties here do not dispute that Plaintiff proceeds under the first prong of this test with respect to the 2nd cause of action against K&S.

Under this first prong, Plaintiff must prove (1) K&S's "actual knowledge of the primary violation" and (2) that K&S gave "substantial assistance." (*Id.* at pp. 1145, 1148.)

Based on the Court's independent research and review of the relevant caselaw on the applicable pleading standard for an aiding and abetting cause of action when the underlying tort relates to fraud, it appears that a heightened pleading standard does not apply to the first element of "actual knowledge" but does apply to the second element of "substantial assistance."

In *Casey*, the California Court of Appeal analyzed whether plaintiffs had sufficiently pleaded a cause of action for aiding and abetting fraud, and the court favorably cited a federal district court case, *Neilson v. Union Bank of California, N.A.* (C.D.Cal. 2003) 290 F.Supp.2d 1101, for the proposition that "it is sufficient for a pleading to 'allege *generally* that defendants had actual knowledge of a specific primary violation.'" (*Casey, supra*, 127 Cal.App.4th at p. 1148, emphasis added, quoting *Neilson, supra*, 290 F.Supp.2d at p. 1120.) Indeed, in *Neilson*, the Central District had held that "while fraud must be pled with specificity, . . . knowledge . . . of a person may be averred *generally*," which "obviates the necessity of pleading detailed facts supporting allegations of knowledge." (*Neilson, supra*, 290 F.Supp.2d at p. 1119, emphasis added.) Thus, "[g]enerally, courts have found pleadings sufficient if they allege *generally* that defendants had actual knowledge of a specific primary violation." (*Id.* at p. 1120, emphasis added.)

Although federal pleading standards do not apply in California courts, California pleading standards are in accord on this point regarding pleading knowledge. "[L]ess specificity is required of a complaint when 'it appears from the nature of the allegations that the defendant must

		necessarily possess full information concerning the facts of the controversy’ . . . [and] . . . ‘when the facts lie more in the knowledge of the opposite party.’” (<i>Tenet Healthsystem Desert, Inc. v. Blue Cross of Cal.</i> (2016) 245 Cal.App.4th 821, 838, quoting <i>Com. on Children’s Television, Inc. v. General Foods Corp.</i> (1983) 35 Cal.3d 197, 217; see also <i>Thomas v. Regents of University of Cal.</i> (2023) 97 Cal.App.5th 587, 611, internal quotes omitted [“less specificity is required in pleading matters of which the defendant has superior knowledge,” including “a defendant’s knowledge or notice or intent”].) The court in <i>Neilson</i> did, however, hold that the “substantial assistance” element of the first prong of California’s aiding and abetting test must be pled with specificity. (<i>Neilson, supra</i>, 290 F.Supp.2d at p. 1130 & fn. 81.) Applying this pleading standard to the instant case, the Court finds that the SAC states sufficient facts to state an aiding and abetting fraudulent transfer cause of action against K&S, regardless of whether the underlying fraudulent transfer claim is under California common or statutory law. As to actual knowledge, which need not be pled with specificity, the SAC adequately alleges generally that K&S had actual knowledge of the primary violation. (ROA #2, SAC, ¶¶ 15 , 27-28, 40, 42.) As to substantial assistance, the SAC adequately alleges with specificity that K&S gave substantial assistance, including by detailing the 7 specific types of acts K&S engaged in that constitute substantial assistance. (<i>Id.</i> at ¶¶ 25-26, 40, 41(a)-(g), 42.) These allegations are sufficient to give “notice to the defendant, to ‘furnish the defendant with certain definite charges which can be intelligently met.’” (<i>Tenet, supra</i>, 245 Cal.App.4th at p. 838, quoting <i>Com. on Children’s Television, supra</i>, 35 Cal.3d at pp. 216-217.) Therefore, the Court OVERRULES K&S’s demurrer because the 2nd cause of action alleges facts sufficient to constitute a cause of action. (CCP, § 430.30, subd. (e).) The Court also notes that although “failure to state facts sufficient to constitute a cause of action” was the only ground cited in K&S’s notice of demurrer and demurrer (ROA #276, Not. of Dem. & Dem., p. 2), K&S’s moving memorandum of points and authorities also make arguments about the SAC being “uncertain” (Dem. P&A, pp. 8, 14-15). “A basic principle of motion practice is that the moving party must specify for the court and the opposing party the grounds upon which that party seeks relief.” (<i>Luri v. Greenwald</i> (2003) 107 Cal.App.4th 1119, 1125.) Moreover, CCP section 1010 requires that a “notice of motion . . . must state . . . the grounds upon which it will be made.” California Rules of Court (CRC), rule 3.1110(a) also requires that “[a] notice of motion must state in the opening paragraph the nature the nature of the order being sought and the grounds for issuance of the order.” Thus, “[a]s a general rule, the trial court may consider only the grounds stated in the notice of motion.” (<i>Luri, supra</i>, 107 Cal.App.4th at p. 1125.)
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		That said, “[a]n omission in the notice may be overlooked if the supporting papers make clear the grounds for the relief sought,” as “[t]he purpose of these requirements is to cause the moving party to sufficiently define the issues for the information and attention of the adverse party and the court.” (<i>Id.</i>, internal quotes omitted.) Here, Plaintiff obviously saw and even responded to K&S’s “uncertainty” arguments in K&S’s moving memorandum of points and authorities. (Opp. at pp. 9-10.) Therefore, the Court will also consider and rule on the merits of Defendant’s demurrer based on uncertainty. Uncertainty is a disfavored ground for demurrers because “ambiguities can be clarified under modern discovery procedures.” (<i>Khoury v. Maly’s of Cal., Inc.</i> (1993) 14 Cal.App.4th 612, 616.) Demurrers for uncertainty should be “granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond.” (<i>A.J. Fistes Corp. v. GDL Best Contractors, Inc.</i> (2019) 38 Cal.App.5th 677, 695, internal quotes omitted.) Here, K&S appears to contend that it is uncertain whether the SAC’s 1st cause of action for civil conspiracy applies to K&S. (See Dem. P&A, p. 15.) It is true that the SAC at ¶ 17 excludes K&S from the definition of “co-conspirator.” Moreover, on page 8 of the SAC, directly under the heading for the 1st cause of action for civil conspiracy, the SAC does not list K&S as among the defendants to whom the 1st cause of action is directed. But it is also true that in ¶ 32, which appears within the 1st cause of action for conspiracy, the SAC alleges that “[t]hese wrongful acts by the Defendants named in this cause of action, including but not limited to co-defendants KERCSMAR & FELTUS, in furtherance of the Conspiracy, caused damage to Plaintiff as described herein.” Therefore, ¶ 32 appears to create an ambiguity. <i>However, that ambiguity has been resolved by Plaintiff’s opposition, which states in no uncertain terms that “[t]he only claim asserted against K&F is the Second Cause of Action” for aiding and abetting.</i> Therefore, the Court also OVERRULES K&S’s demurrer to the SAC based on uncertainty. Plaintiff shall give notice.
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